

24VECV06098 24VECV06098

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Case Number: 24VECV06098 Hearing Date: July 31, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Moshe Eliezer, et al.,

Plaintiffs,

v.

Robert A. Rudolph, et al.

Defendants.

Case Number Department

24VECV06098 107

COURT'S [TENTATIVE]
ORDER RE:

Motion for Leave to Amend Complaint

Tentative:

Deny

I.

BACKGROUND

This

is a landlord-tenant dispute. On October 19, 2019, Plaintiffs Moshe Eliezer and Mazal Eliezer ("Plaintiffs") entered a lease with Defendants Robert A. Rudolph aka Rudy A. Rudolph aka Rudy Rudolph aka Robert Rudolph ("Rudolph") and Catherine L. Littleton aka Catherine Littleton ("Littleton"). (Complaint ¶ 7.) Rudolph and Littleton leased a property located at 22403 Philipprimm Street, Woodland Hills, California 91367 (the "Subject Property"). (Complaint ¶ 2.)

On

December 9, 2024, Plaintiffs filed a complaint against Defendants Rudolph, Littleton, and Does 1 to 20, alleging a breach of written contract cause of action. (Complaint p. 3.)

On

February 13, 2025, Cross-Complainants Robert A. Rudolph and Catherine L. Littleton filed a cross-complaint against Cross-Defendants Moshe Eliezer and Mazal Eliezer alleging causes of action for: (1) violation of the Los Angeles Rent Stabilization Ordinance – LAMC section 151.00, et seq.; and (2) violation of the Los Angeles Tenant Anti-Harassment Ordinance – LAMC section 45.33, et seq.

On

February 24, 2026, Plaintiffs filed a motion for leave to amend complaint (the "First Motion"). On April 30, 2026, the court denied the First Motion. (04/30/26 Minute Order p. 3.)

On

May 11, 2026, Plaintiffs filed another motion to amend complaint (the "Motion"). As of July 27, 2026, no opposition has been filed.

II.

PROCEDURAL REQUIREMENTS

"A

motion to amend a pleading before trial must: (1) Include a

copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal. Rules of Court, rule 3.1324(a).)

The motion must be accompanied by a separate declaration, which must specify: “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b).)

The proposed first amended complaint is attached to the Motion. (Nadel Declaration Ex. 1 pdf pp. 7-23.) Plaintiffs state they intend to add a cause of action for waste and edit the amount of rent arrearages. (Motion p. 2.) The Motion does not state what allegations are proposed to be deleted and added by reference to page, paragraph, and line number.

Plaintiffs' counsel's declaration indicates the effect of the amendment is to add a cause of action for waste and amend the erroneous arrearages calculation. (Nadel Declaration ¶ 2.) Plaintiffs' counsel indicates the amendment is necessary and proper because counsel “was unaware of the air conditioning unit's lack of maintenance and damage in the rental unit until after the summer and a non-working unit was disclosed by my Clients last summer (2025).” (Nadel Declaration ¶ 4.) Plaintiffs' counsel also indicates the arrearage calculation in the current complaint is erroneous. (Nadel Declaration ¶ 2.) Plaintiffs' counsel also indicates the facts were discovered through discovery occurring after the filing of the complaint. (Nadel Declaration ¶ 2.) Plaintiffs' counsel does not specifically state when the facts were discovered, but indicates it was before October 2025. (Nadel Declaration ¶ 4.)

The Motion does not comply with California Rules of Court, rule 3.1324 because it does not state what allegations are proposed to be deleted and added by reference to page, paragraph, and line number. Plaintiffs' counsel's declaration is also unclear

as to when the facts giving rise to the allegations were discovered or why the request was not made earlier.

III.

LEGAL STANDARD

“The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations], this policy should be applied only ‘where no prejudice is shown to the adverse party . . . [citation]. A different result is indicated ‘where inexcusable delay and probable prejudice to the opposing party’ is shown. [Citation].” (Magpali v. Farmers Group (1996) 48 Cal.App.4th 471, 487, brackets omitted.)

“Time and knowledge are important factors to be considered when granting or denying a motion to amend.” (Stockton v. Ortiz (1975) 47 Cal.App.3d 183, 194.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court of Cal. In and For Los Angeles County (1959) 172 Cal.App.2d 527, 530.)

IV.

DISCUSSION

Plaintiffs’

counsel’s declaration indicates Plaintiffs learned of the facts giving rise to the amendment between December 2024 and October 2025. (Nadel Declaration ¶¶ 2, 4.) Thus, Plaintiffs delayed between four and fourteen months before filing the Motion. However, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) Defendants filed no opposition indicating they will be prejudiced if the Motion is granted. Trial is set for October 5, 2026. Thus, Defendants have time to prepare for trial based on the first amended complaint.

V.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: July 31, 2026

Hon. Eric Harmon

Judge of the
Superior Court